PRELIMINARY EXPERT RESEARCH MEMORANDUM / REVIEW COPY

Fortinet, Inc. v. Netskope, Inc.

A public complaint analysis describes four asserted patents and allegations concerning dynamic file access control, multi-cloud management, cloud-security posture management, shadow-IT detection, and behavioral analytics in an enterprise cybersecurity platform.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-25	U.S. District Court for the Northern District of California	4:26-cv-08886	Patent Infringement

Prepared 2026-08-27. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

01 / MATTER VERIFICATION AND ASSESSMENT

Public filing, likely recipient, and technical frame

CAPTION	Fortinet, Inc. v. Netskope, Inc.
FORUM / DOCKET	U.S. District Court for the Northern District of California / 4:26-cv-08886
FILED / TYPE	2026-08-25 / patent infringement
PUBLIC DOCKET	Open docket

VERIFIED PUBLIC RECORD

The public docket identifies Fortinet, Netskope, the August 25, 2026 filing date, docket number 4:26-cv-08886, and Ryan Kiyoto Iwahashi as the filer of the amended complaint. It lists Fortinet counsel including Iwahashi, Sorensen, Schenker, Gerchick, Gerson, Holmes, Gish, and Rudis.

LIKELY RESEARCH PURCHASER

Ryan Kiyoto Iwahashi - Outside counsel, Gish PLLC. The public docket identifies Iwahashi as Fortinet counsel and the filer of the amended complaint. Treating the opening filer as a potential purchaser is an analytical inference, not a verified purchasing decision.

ryan@gishpllc.com - publicly printed in the linked professional source; not inferred.

TECHNICAL FRAME

A public complaint analysis describes four asserted patents and allegations concerning dynamic file access control, multi-cloud management, cloud-security posture management, shadow-IT detection, and behavioral analytics in an enterprise cybersecurity platform.

Secondary-source limitation: This is preliminary public-source analysis. The filed pleading and exhibits, source code, configuration evidence, and discovery must control any final technical opinion. Open public synopsis

REPORTED ASSERTED PATENTS

U.S. Patent No. 11,290,527 | U.S. Patent No. 11,449,623 | U.S. Patent No. 12,126,695 | U.S. Patent No. 12,244,621

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Dynamic file-access control

Does the accused platform collect and use the claimed file-access information to make or enforce the claimed dynamic access-control decision?

Potential evidence: Claim language, product architecture, policy configuration, audit logs, source code, telemetry, and controlled tests.

02 Behavioral risk analytics

Do the accused behavioral analytics operate on the claimed inputs and generate the claimed confidence or risk result?

Potential evidence: Analytics pipeline documentation, model inputs and outputs, event schemas, source code, logs, and expert reconstruction.

03 Cloud-control-plane inventory

Which APIs, discovery processes, resource tags, or configuration records create and update the alleged multi-cloud inventory or posture-management functions?

Potential evidence: Cloud API integrations, service documentation, connectors, deployment records, API traces, and configuration-management data.

04 Encrypted traffic and security visibility

What information remains observable and actionable when enterprise traffic is encrypted, and which component performs any claimed detection or enforcement?

Potential evidence: Network traces, TLS/inspection configuration, policy-engine records, sensor documentation, source code, and test environments.

Questions likely to require expert input

05 Component attribution and product versions

Which Netskope One components and versions perform each alleged function during the relevant period?

Potential evidence: Release histories, architecture diagrams, deployment records, version-control evidence, product roadmaps, and engineering testimony.

06 Technical alternatives and value

Could similar security outcomes be achieved through materially different telemetry, policy, cloud-inventory, or traffic-analysis designs, and what technical contribution is attributable to the asserted features?

Potential evidence: Alternative designs, benchmarks, comparative architectures, engineering records, customer use evidence, and technical-nexus analysis.

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Raluca Ada Popa

Associate Professor, UC Berkeley; head of Security & Privacy Research, Google DeepMind

TECHNICAL FIT

Cloud-system architecture, encrypted data access, access-pattern leakage, and privacy-preserving computation.

RELEVANT WORK

Her Opaque and Metal projects address secure cloud analytics, metadata-hiding file sharing, and access control.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

More cryptographic/cloud-systems focused than commercial CASB operations.

Source 1 | Source 2 | Source 3

Draft email | raluca.popa@berkeley.edu | public email source

02 Gail-Joon Ahn

Professor, Arizona State University; founding director, CTF and SEFCOM

TECHNICAL FIT

Policy enforcement, attribute- and role-based access control, distributed-system security architecture, and security analytics.

RELEVANT WORK

ASU lists access control, distributed systems, big-data security analytics, and risk management among his research areas.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Product-specific CASB implementation analysis could need a separate systems practitioner.

Source 1

Draft email | gahn@asu.edu | public email source

Candidates 3-4 for further diligence

03 Nicholas Feamster

Neubauer Professor of Computer Science, University of Chicago; Faculty Director of Research, Data Science Institute

TECHNICAL FIT

Network telemetry, measurement, security and privacy, and inference from network behavior.

RELEVANT WORK

His profile describes research in networking, security, and privacy, and prior industry work designing a botnet-detection algorithm at Damballa.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Not principally an enterprise DLP or CASB product operator.

Source 1

Draft email | feamster@uchicago.edu | public email source

04 Vern Paxson

Distinguished Fellow, ICSI; Professor in the Graduate School, UC Berkeley; Corelight co-founder and chief scientist

TECHNICAL FIT

Network-security visibility, intrusion detection, threat intelligence, and telemetry architecture.

RELEVANT WORK

He is associated with Zeek and research in network intrusion detection and security measurement.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

His Corelight role could require careful relationship and conflict diligence with relevant vendors or customers.

Source 1

Draft email | vern@berkeley.edu | public email source

Candidates 5-6 for further diligence

05 Ravi Sandhu

Professor Emeritus, University of Texas at San Antonio

TECHNICAL FIT

Access-control models, security policy, and secure cloud-computing systems.

RELEVANT WORK

His institutional profile describes research in access control and secure cloud computing.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Emeritus status and a theory/policy orientation may be less tied to current SASE product implementation.

Source 1

Draft email | Ravi.Sandhu@utsa.edu | public email source

06 Dawn Song

Professor, UC Berkeley; co-director, Berkeley Center for Responsible Decentralized Intelligence

TECHNICAL FIT

Systems security, privacy, and security analytics.

RELEVANT WORK

Berkeley lists her among Sky Computing Lab faculty and describes research in security, privacy, and AI.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

High-profile, broad portfolio; may be less focused on detailed CASB configuration evidence.

Source 1

Draft email | dawnsong@cs.berkeley.edu | public email source

Candidates 7-8 for further diligence

07 Stefan Savage

Professor of Computer Science and Engineering, UC San Diego; director, Center for Networked Systems

TECHNICAL FIT

Distributed systems, networking, intrusion detection, malware, and security measurement.

RELEVANT WORK

UCSD describes research spanning network security, distributed systems, and security measurement.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Stronger on network-security architecture than patent-specific cloud-access semantics.

Source 1

Draft email | savage@cs.ucsd.edu | public email source

08 Deian Stefan

Associate Professor, UC San Diego Computer Science and Engineering

TECHNICAL FIT

Least-privilege systems, policy enforcement, information-flow control, and runtime enforcement.

RELEVANT WORK

His profile describes work on information-flow control, web security, and secure systems; it also identifies an industry founder/chief-scientist role.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Programming-language and secure-web orientation rather than network-operations specialization.

Source 1

Draft email | deian@cs.ucsd.edu | public email source

Candidates 9-10 for further diligence

09 Prateek Mittal

Professor of Electrical and Computer Engineering, Princeton University

TECHNICAL FIT

Secure and privacy-preserving communications, traffic analysis, encrypted traffic, and network security.

RELEVANT WORK

His research includes analysis of encrypted communications and applied privacy/security systems.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Best aligned with encrypted-traffic and telemetry questions, less with CSPM APIs and cloud resource tagging.

Source 1 | Source 2

Draft email | pmittal@princeton.edu | public email source

10 David Wagner

Professor, UC Berkeley; Carl J. Penther Chair in Engineering

TECHNICAL FIT

Applied cryptography, security implementation, software security, and security analytics.

RELEVANT WORK

His university profile describes research in computer security, applied cryptography, and software security.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Broad security and cryptography fit rather than enterprise cloud-control-plane specialization.

Source 1

Draft email | daw@cs.berkeley.edu | public email source

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.

- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.

- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.

- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

Schedule a 15-minute conversation

CORE SOURCES

Public docket: https://dockets.justia.com/docket/california/candce/4%3A2026cv08886/477001

Public professional email source: https://docs.justia.com/cases/federal/district-courts/california/candce/4%3A2025cv02360/446034/120

Public technical context source: https://ai-lab.exparte.com/case/dct/cand/4%3A26-cv-08886/doc/analysis/2

LIMITATIONS

This is preliminary public-source analysis. The filed pleading and exhibits, source code, configuration evidence, and discovery must control any final technical opinion.

No attorney or expert was contacted. Availability, interest, compensation, and conflicts were not checked.